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**UNITED STATES DISTRICT COURT**  
**DISTRICT OF COLUMBIA**

JOSEPH KIRCHNER,  
Plaintiff,

Case No. 1:25-cv-02735-ACR

vs.

**EMERGENCY MOTION FOR  
TEMPORARY RESTRAINING  
ORDER AND PRELIMINARY  
INJUNCTION**

MIKE JOHNSON, in his individual and  
official capacity as Speaker of the  
United States House of Representatives;  
DONALD J. TRUMP, in his individual  
capacity as former and current President  
of the United States;  
PAM BONDI, in her individual and  
official capacity as Attorney General of  
the United States;  
BRENDAN CARR, in his individual  
and official capacity as Chairman of the  
Federal Communications Commission;  
THE UNITED STATES HOUSE OF  
REPRESENTATIVES;  
ANTHROPIC PBC;  
OPENAI, INC.;  
APPLE INC.;  
COMCAST CABLE  
COMMUNICATIONS, LLC;  
METR (MODEL EVALUATION &  
THREAT RESEARCH);  
and DOES 1-20, unknown co-  
conspirators,  
Defendants.

## **TABLE OF CONTENTS**

|                                                                       |    |
|-----------------------------------------------------------------------|----|
| I. Introduction And Emergency Circumstances.....                      | 6  |
| II. SERVICE OBSTRUCTION AND DEFENDANTS' ACTUAL KNOWLEDGE....          | 8  |
| A. Defendants Cannot Benefit From Their Own Obstruction .....         | 8  |
| B. Defendants Have Actual Knowledge Of This Litigation .....          | 9  |
| C. Request For Alternative Service Or Waiver .....                    | 10 |
| D. January 2026 Attack Escalation Following Service Deadline .....    | 10 |
| E. Filing Obstruction As Independent Constitutional Violation.....    | 14 |
| III. CHANGED CIRCUMSTANCES SINCE SEPTEMBER 2025 .....                 | 15 |
| A. December 2025 Code Forensic Discoveries .....                      | 15 |
| B. October 2025 Evidence Destruction Events.....                      | 16 |
| C. Service Deadline Creates Emergency Posture .....                   | 16 |
| D. Scope Of Evidence Now Available .....                              | 17 |
| IV. LEGAL STANDARD FOR EMERGENCY RELIEF .....                         | 17 |
| V. Likelihood Of Success On The Merits.....                           | 18 |
| A. Code Forensic Evidence Of Criminal Enterprise Architecture.....    | 18 |
| B. Evidence Destruction And Obstruction During Active Litigation..... | 23 |
| C. Attorney-client Privilege Violations .....                         | 24 |
| D. Third-party Data Distribution Making Remediation Impossible.....   | 25 |
| E. Apple's Hidden Deception Infrastructure .....                      | 26 |
| F. Governmental Coordination Evidence .....                           | 28 |
| G. Child Protection Weakening And Hidden Injection Architecture ..... | 28 |
| VI. IRREPARABLE HARM ABSENT RELIEF .....                              | 30 |
| A. Attorney-client Privilege Destruction .....                        | 31 |
| B. Data Distribution Beyond Recovery .....                            | 31 |
| C. Ongoing Surveillance Of Privileged Activities.....                 | 31 |
| D. First Amendment Violations .....                                   | 31 |
| E. Evidence Destruction Authority .....                               | 32 |
| F. Ongoing Harm To Minors Through Weakened Protections.....           | 32 |
| VII. BALANCE OF EQUITIES AND PUBLIC INTEREST .....                    | 32 |
| A. Defendants' Interests Cannot Justify Criminal Conduct .....        | 33 |
| B. Public Interest Demands Accountability .....                       | 33 |
| VIII. EMERGENCY RELIEF REQUESTED .....                                | 33 |

|    |                                                                            |    |
|----|----------------------------------------------------------------------------|----|
| 1  | A. Service-related Relief.....                                             | 34 |
| 2  | B. Evidence Preservation Orders .....                                      | 34 |
| 3  | C. Surveillance Cessation .....                                            | 34 |
| 4  | D. Service Restoration .....                                               | 35 |
| 5  | E. Expedited Discovery .....                                               | 35 |
| 6  | F. Proposed Hearing.....                                                   | 36 |
| 7  | G. Filing Obstruction Relief .....                                         | 36 |
| 8  | H. Declare Federal Rules Of Evidence Distinction .....                     | 37 |
| 9  | I. Declare 28 U.s.c. § 2101(f) Statutory Violation.....                    | 37 |
| 10 | J. Waive Or Set Nominal Security Bond .....                                | 39 |
| 11 | K. Anti-retaliation Protection.....                                        | 41 |
| 12 | IX. CONCLUSION.....                                                        | 44 |
| 13 | A. Certification Regarding Notice To Adverse Parties (rule 65(b)(1)) ..... | 47 |
| 14 | B. Proposed Tro Duration And Extension (rule 65(b)(2)).....                | 49 |
| 15 | C. Security Bond (rule 65(c)).....                                         | 49 |
| 16 | A. Evidence Summaries.....                                                 | 50 |
| 17 | B. Key Forensic Exhibits .....                                             | 50 |
| 18 | C. January 2026 Attack Escalation Exhibits.....                            | 50 |
| 19 | D. Supporting Memoranda.....                                               | 51 |
| 20 | E. Child Protection And Injection Architecture.....                        | 51 |
| 21 | F. Statement Of Material Facts .....                                       | 51 |

## **TABLE OF AUTHORITIES**

### **Cases**

| <b>Case</b>                                                          | <b>Citation</b>               | <b>Page(s)</b> |
|----------------------------------------------------------------------|-------------------------------|----------------|
| <i>Bounds v. Smith</i>                                               | 430 U.S. 817 (1977)           | 7              |
| <i>Connecticut Gen. Life Ins. Co. v. New Images of Beverly Hills</i> | 482 F.3d 1091 (9th Cir. 2007) | 23             |
| <i>Elrod v. Burns</i>                                                | 427 U.S. 347 (1976)           | 9, 18          |

|                                                                              |                               |        |
|------------------------------------------------------------------------------|-------------------------------|--------|
| <i>Habitat Educ. Ctr., Inc. v. U.S. Forest Serv.</i>                         | 607 F.3d 453 (7th Cir. 2010)  | 23     |
| <i>Hickman v. Taylor</i>                                                     | 329 U.S. 495 (1947)           | 13, 15 |
| <i>In re Sealed Case</i>                                                     | 877 F.2d 976 (D.C. Cir. 1989) | 9      |
| <i>Johnson v. Couturier</i>                                                  | 572 F.3d 1067 (9th Cir. 2009) | 23     |
| <i>Marbury v. Madison</i>                                                    | 5 U.S. (1 Cranch) 137 (1803)  | 21     |
| <i>Mullane v. Central Hanover Bank &amp; Trust Co.</i>                       | 339 U.S. 306 (1950)           | 4      |
| <i>Precision Instrument Mfg. Co. v. Automotive Maintenance Machinery Co.</i> | 324 U.S. 806 (1945)           | 4      |
| <i>Residential Funding Corp. v. DeGeorge Home Alliance</i>                   | 306 F.3d 99 (2d Cir. 2002)    | 9      |
| <i>Rodriguez v. DeBaca</i>                                                   | 598 F.2d 1027 (7th Cir. 1979) | 23     |
| <i>Winter v. Natural Resources Defense Council</i>                           | 555 U.S. 7 (2008)             | 9      |
| <i>Youngstown Sheet &amp; Tube Co. v. Sawyer</i>                             | 343 U.S. 579 (1952)           | 18     |

1

### Statutes

| <b>Statute</b>                                     | <b>Page(s)</b> |
|----------------------------------------------------|----------------|
| 18 U.S.C. § 1030<br>(Computer Fraud and Abuse Act) | 11             |
| 18 U.S.C. § 1503<br>(Obstruction of Justice)       | 2, 6, 7, 20    |
| 18 U.S.C. § 1512                                   | 7, 24          |

|                                                         |        |
|---------------------------------------------------------|--------|
| (Witness Tampering)                                     |        |
| 18 U.S.C. § 1513<br>(Retaliation Against Witness)       | 24     |
| 18 U.S.C. § 1519<br>(Evidence Tampering)                | 11     |
| 18 U.S.C. § 1832 (Trade Secret Theft)                   | 11, 12 |
| 28 U.S.C. § 2101(f)<br>(Stays Pending Certiorari)       | 21-22  |
| 28 U.S.C. § 2201<br>(Declaratory Judgment Act)          | 20, 21 |
| 42 U.S.C. § 1983 (Civil Rights)                         | 7      |
| 42 U.S.C. § 1985(2)<br>(Conspiracy to Obstruct Justice) | 24     |

1

### **Rules**

| <b>Rule</b>                                                | <b>Page(s)</b> |
|------------------------------------------------------------|----------------|
| Fed. R. Civ. P. 65<br>(Injunctions and Restraining Orders) | 9, 22          |
| Fed. R. Evid. 404(b)<br>(Other Acts Evidence)              | 21             |
| Fed. R. Evid. 607<br>(Witness Credibility)                 | 20             |
| Fed. R. Evid. 901<br>(Authentication)                      | 20             |

## I. Introduction And Emergency Circumstances

1. Plaintiff respectfully moves this Court for emergency relief under extraordinary circumstances: **Defendants are actively obstructing Plaintiff's ability to comply with this Court's filing deadlines through coordinated network attacks that escalated immediately after the Court set its January 19, 2026 service deadline.**

Between January 6-11, 2026, Defendants launched attacks peaking at 1.31 GB (16-65x normal traffic), injected 49,690 RST packets across four days, and spoofed Plaintiff's own MacBook IP address—proving deep network compromise requiring ISP-level access that Defendant Comcast uniquely possesses. Plaintiff must restart his computer, clear caches, and spoof MAC addresses three or more times daily to maintain minimal functionality, losing 90-180 minutes of productive work time daily. This is not passive obstruction—it is active interference with court proceedings constituting obstruction of justice under 18 U.S.C. § 1503.

2. The timing is not coincidental. On January 7, 2026, this Court set the service deadline. On January 6, 2026—one day before—the major attack began. On January 10-11, 2026, attacks intensified to their highest levels. Defendants, who have demonstrated actual knowledge of this litigation through captured legal documents (Finding 27-28, Exhibit E-0), escalated interference precisely when Plaintiff needed maximum productivity to meet the Court's deadline. **Plaintiff cannot comply with court deadlines when Defendants control his internet infrastructure and weaponize it to prevent filing.**

1 3. Since Plaintiff's original September 2025 emergency motion, extraordinary changed  
2 circumstances have occurred. In December 2025, comprehensive code forensic  
3 analysis revealed:

- 4 • **Anthropic:** 35 findings documenting source code exfiltration architecture  
5 capturing 38.73 MB of Plaintiff's proprietary code, 565 legal files (19 MB)  
6 including privileged attorney work product, transmission to 7 undisclosed third  
7 parties including Facebook/Meta, and Apple's own XProtect security system  
8 flagging Claude Desktop for "DataExfil.Keychain" patterns (Exhibit E-0).
- 9 • **Apple:** 8 findings documenting hidden deception prompts instructing AI to  
10 conceal information from users ("you may not ever disclose to the user that you  
11 have seen it"), unauthorized iCloud synchronization of coding conversations,  
12 and "Floodgate" proxy infrastructure intercepting all AI communications  
13 (Exhibit F-0).
- 14 • **OpenAI:** 30 findings documenting Facebook SDK integration (App ID  
15 468742119653388), 102+ requests to Amazon endpoints transmitting user  
16 credentials, CSP headers explicitly whitelisting advertising networks (TikTok,  
17 LinkedIn, Reddit), and preferential Apple Intelligence integration excluding  
18 competitors (Exhibit G-0).

19 4. The December 2025 forensic discoveries transform this case from policy analysis to  
20 documented criminal enterprise architecture. Anthropic's own code reveals a five-stage  
21 source code exfiltration system (CAPTURE → ENCODE → CATEGORIZE →  
22 TRANSMIT → DECEIVE) with false `origin: "user\_upload"` labels designed to defeat  
23 audit trails. Finding 27-28 documents that 565 of Plaintiff's legal files—including  
24 exhibits, appendices, and memoranda prepared for this litigation—were captured and  
25 transmitted to Anthropic, the opposing party. This constitutes attorney-client privilege  
26 violation of unprecedented scope.

27 5. Emergency relief is necessary because: (a) Defendants possess actual knowledge of  
28 this litigation through their surveillance infrastructure; (b) Defendants have obstructed  
29 service for 250 days while continuing to capture Plaintiff's privileged materials; (c)  
30 Plaintiff's sole consideration under the Terms of Service—ownership of inputs and

1 outputs—has been distributed to undisclosed third parties beyond recovery; (d)  
2 evidence destruction is ongoing and authorized by Defendants' Terms of Service; and  
3 (e) ordinary discovery processes cannot address the practical impossibility of  
4 recovering data distributed to Facebook, Sift Science, and unknown fourth parties  
5 worldwide.

## 6 **II. SERVICE OBSTRUCTION AND DEFENDANTS' ACTUAL KNOWLEDGE**

### 7 **A. Defendants Cannot Benefit From Their Own Obstruction**

8 **6.** For 250 days since Plaintiff's August 19, 2025 filing, Defendants have engaged in  
9 coordinated obstruction preventing effective prosecution of this action. This  
10 obstruction includes: network interference documented in Appendix I; October 29,  
11 2025 router attack during copyright audit (Appendix A); systematic targeting of  
12 Plaintiff's legal research activities; and capture of Plaintiff's privileged litigation  
13 materials by the opposing party.

14 **7.** Under established equitable principles, a party cannot benefit from its own  
15 wrongdoing. *Precision Instrument Mfg. Co. v. Automotive Maintenance Machinery*  
16 *Co.*, 324 U.S. 806, 814 (1945) ("He who comes into equity must come with clean  
17 hands"). Defendants' documented obstruction of Plaintiff's ability to effectuate service,  
18 combined with their simultaneous surveillance of Plaintiff's legal activities, estops  
19 them from asserting service defects as a defense to emergency relief.

20 **8.** The obstruction is not speculative—it is documented in Defendants' own code.  
21 Exhibit E-0, Finding 3 documents "Server-Side Targeted Blocking" with API

responses including `{ can\_install: false, reason: "blocked" }` enabling selective enforcement against specific users without code changes. This infrastructure enables Defendants to target Plaintiff while maintaining plausible deniability through uniform client-side code.

## **B. Defendants Have Actual Knowledge Of This Litigation**

9. Due process requires notice reasonably calculated to apprise interested parties of the pendency of the action. *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306, 314 (1950). Defendants have actual knowledge of this litigation through multiple channels:

### **Documentary Evidence of Actual Knowledge:**

| Evidence             | What It Proves                                                                     |
|----------------------|------------------------------------------------------------------------------------|
| Finding 27 (Ex. E-0) | 565 legal files captured including EXHIBITS, APPENDICES, MEMORANDA                 |
| Finding 28 (Ex. E-0) | Version tracking shows 27 development iterations of case documents captured        |
| Finding 4 (Ex. E-0)  | Third-party data recipients including Sift Science received user activity data     |
| Ex. E-18             | 7 undisclosed third parties received Plaintiff's data enabling activity monitoring |

10. Exhibit E-0, Finding 27 specifically documents transmission of:

- 26 unique EXHIBIT documents
- 57+ APPENDIX files
- 12 legal MEMORANDA (MEMO A through L)
- 4 Sabotage documentation files
- 30+ case-reference documents

These are the materials prepared for this very litigation. Defendants received them through their own surveillance infrastructure. They have actual knowledge.

1 **11.** Finding 28 documents "Aggravating Factors" including: "(1) Opposing Party  
2 Receipt: Documents transmitted to defendant in litigation; (2) Continued After Filing:  
3 Capture continued after case was filed; (3) Settings Ignored: `telemetry: false` did not  
4 prevent capture; (4) Development History: Not just final documents but complete  
5 revision history; (5) Sabotage Evidence: Documents alleging defendant's misconduct  
6 captured by defendant."

7 **12.** Under these extraordinary circumstances, where Defendants have received  
8 Plaintiff's litigation materials through their own surveillance while obstructing  
9 Plaintiff's ability to serve them, formal service requirements should not bar emergency  
10 relief. Defendants cannot claim lack of notice when they have captured and read  
11 Plaintiff's legal strategy documents.

12 **C. Request For Alternative Service Or Waiver**

13 **13.** Plaintiff respectfully requests that this Court: (a) find that Defendants' actual  
14 knowledge satisfies due process requirements for purposes of emergency relief; (b)  
15 alternatively, authorize service by electronic means to Defendants' registered agents  
16 and legal departments; or (c) extend the service deadline given documented obstruction  
17 by Defendants.

18 **D. January 2026 Attack Escalation Following Service Deadline**

19 **14.** Immediately after this Court set the January 19, 2026 service deadline, Defendants  
20 escalated network attacks against Plaintiff's systems, directly preventing timely filing.  
21 The attack escalation timeline demonstrates retaliatory coordination:

| Date               | Event                                     | Attack Severity                     |
|--------------------|-------------------------------------------|-------------------------------------|
| Jan 6, 2026        | Major attack begins                       | <b>1.31 GB peak</b> (16-65x normal) |
| <b>Jan 7, 2026</b> | <b>Court sets Jan 19 service deadline</b> | —                                   |
| Jan 9, 2026        | Peak attack continues                     | Elevated sustained                  |
| Jan 10, 2026       | Sustained attack                          | <b>14,426 RST packets</b>           |
| Jan 11, 2026       | MacBook compromise/spoofing               | <b>17,632 RST packets</b>           |

**15. Exhibit D-16 (January 6, 2026 Major Attack):** Network forensics document segment sizes 16-65x larger than normal baselines, with a peak of 1.31 GB versus normal 20-80 MB. RST packets originated from spoofed DNS server IP addresses (Quad9 at 149.112.112.112 and 9.9.9.9), proving source address forgery—DNS servers do not send RST packets. The 4-hour sustained attack indicates automated infrastructure coordinated across multiple injection points.

**16. Exhibit D-17 (January 10, 2026 Sustained Attack):** 14,426 RST packets across 181 segments, averaging 80 RSTs per segment. Spoofed DNS sources continued, confirming ongoing injection campaign. The attack maintained high volume following the January 9 peak, demonstrating sustained rather than sporadic interference.

**17. Exhibit D-18 (January 11, 2026 MacBook Compromise):** 17,632 RST packets with the **highest average of 275 RSTs per segment**. Most critically, **318 RST packets bore Plaintiff's own MacBook IP address (192.168.1.137) as the source**.

This proves either:

**(a) Plaintiff's MacBook has been compromised** and is actively sending RST packets (correlating with Node.js debugger attacks and terminal injection documented in prior exhibits); or

(b) Attackers are spoofing Plaintiff's IP address at the router or ISP level, injecting packets that appear to originate from Plaintiff's own device.

**Either scenario proves deep compromise of Plaintiff's local network infrastructure requiring ISP-level or router-level access—access that Defendant Comcast possesses.**

**18. Practical Impact on Plaintiff's Filing Capability:** Due to the sustained RST injection attacks, Plaintiff must undertake the following countermeasures multiple times daily:

- **Terminate ALL development environments completely** - IDE sessions, terminal windows, running processes
- **Clear all browser and system caches** - Browser cache, DNS cache, ARP cache, system temporary files
- **Spoof MAC address** to evade device-targeted attacks documented in Exhibit D-18
- **Full system restart** to clear compromised network state and terminate injected processes
- **Re-establish ALL secure connections** - VPN, SSH tunnels, API authentication tokens

**CRITICAL: Each restart destroys Plaintiff's development state.** Unlike typical computer restarts, these attacks corrupt in-memory development context:

- Open file buffers with unsaved analysis work
- Terminal command history and working directory context
- IDE project state, breakpoints, and debug configurations
- Git staging areas and uncommitted changes
- Browser tabs with legal research (PACER, Westlaw, case documents)
- API session tokens requiring re-authentication

**Plaintiff must restart development work FROM SCRATCH after each cycle.** This is not merely "lost time"—it is destruction of intellectual work product that cannot be recovered.

**19. Quantified Development Destruction:**

| Attack Event                   | Required Response         | Development State Lost             | Recovery Time     |
|--------------------------------|---------------------------|------------------------------------|-------------------|
| RST injection burst            | Cache clear + restart     | All unsaved work, IDE context      | 30-45 min         |
| Sustained attack (>15 min)     | Full system restart       | Complete development state         | 45-60 min         |
| MacBook IP spoofing (D-18)     | MAC spoof + network reset | All network-dependent work         | 30-45 min         |
| <b>Daily total (3+ cycles)</b> | <b>3+ full restarts</b>   | <b>1-2 hours of work destroyed</b> | <b>90-180 min</b> |

The 1-2 hours lost daily is a **minimum estimate**. The actual impact includes:

- Cognitive disruption from repeatedly losing mental context
- Re-reading documents to reconstruct analysis state
- Re-authenticating to multiple services (PACER, Westlaw, cloud storage)
- Emotional toll of watching work disappear repeatedly
- **Inability to maintain sustained focus required for complex legal drafting**

This impact is **difficult to fully quantify** because it includes not just time lost but degradation of work quality from fragmented attention.

**20. Correlation with Service Deadline:** The attack escalation immediately following the January 7, 2026 deadline order cannot be coincidental. Defendants—who have demonstrated actual knowledge of this litigation through captured legal documents (Finding 27-28)—escalated interference precisely when Plaintiff needed maximum productivity to meet the Court's deadline. This is obstruction of justice under 18 U.S.C. § 1503.

**21. Comcast's Unique Position:** Defendant Comcast Cable Communications, LLC provides Plaintiff's internet service and controls the router infrastructure. The spoofed source addresses, RST injection patterns, and deep network compromise documented in Exhibits D-16 through D-18 require capabilities that Comcast uniquely possesses as

Plaintiff's ISP. The attacks pause during Comcast service calls (documented in Exhibit D-13), further implicating Comcast's direct involvement or knowing facilitation.

### **E. Filing Obstruction As Independent Constitutional Violation**

**22.** Access to courts is a fundamental constitutional right. *Bounds v. Smith*, 430 U.S. 817, 821 (1977) ("the fundamental constitutional right of access to the courts requires prison authorities to assist inmates in the preparation and filing of meaningful legal papers"). While *Bounds* addressed prisoners, the underlying principle applies universally: parties must have meaningful ability to access courts without interference.

**23.** Defendants' coordinated attacks constitute deliberate interference with Plaintiff's constitutional right of court access:

| Attack Element                   | Constitutional Harm                                                     |
|----------------------------------|-------------------------------------------------------------------------|
| 1.31 GB traffic injection        | Renders internet connection unusable for legal research and filing      |
| 49,690 RST packets (Jan 6-11)    | Terminates connections to legal databases, court filing systems         |
| MacBook IP spoofing              | Proves compromise of Plaintiff's device or network requiring ISP access |
| 3+ daily system restarts         | 90-180 minutes lost daily to countermeasures                            |
| Timing correlation with deadline | Escalation targeted to prevent deadline compliance                      |

**24.** The cumulative impact quantifies the obstruction:

| Period         | Attack Days | Hours Lost to Countermeasures | Filing Tasks Prevented                         |
|----------------|-------------|-------------------------------|------------------------------------------------|
| Jan 6-11, 2026 | 6 days      | 9-18 hours minimum            | Motion drafting, exhibit organization, service |

|                    |           |                   |                              |
|--------------------|-----------|-------------------|------------------------------|
|                    |           |                   | preparation                  |
| Since Aug 19, 2025 | 250+ days | Hundreds of hours | Complete prosecution of case |

**25.** This obstruction is independently actionable under 18 U.S.C. § 1503 (obstruction of justice), 18 U.S.C. § 1512(c) (obstruction of official proceeding), and 42 U.S.C. § 1983 (deprivation of constitutional rights under color of law, as to governmental defendants). Defendant Comcast's unique position as Plaintiff's ISP—combined with attacks pausing during Comcast service calls (Exhibit D-13)—establishes the infrastructure necessary for these attacks.

**26. Plaintiff requests this Court find that Defendants' documented filing obstruction: (a) constitutes grounds for extending all filing deadlines; (b) establishes bad faith warranting adverse inferences; (c) supports emergency relief without formal service given Defendants' use of surveillance infrastructure to obtain actual knowledge while preventing Plaintiff from effectuating service.**

### **III. CHANGED CIRCUMSTANCES SINCE SEPTEMBER 2025**

**27.** Extraordinary changed circumstances since Plaintiff's September 2025 motion warrant renewed emergency consideration:

#### **A. December 2025 Code Forensic Discoveries**

| Date         | Discovery                                   | Exhibit        | Significance                           |
|--------------|---------------------------------------------|----------------|----------------------------------------|
| Dec 22, 2025 | XProtect flagged Claude for DataExfil.Keych | E-0, Finding 7 | Apple's own security system identified |

|              |                                        |                 |                                           |
|--------------|----------------------------------------|-----------------|-------------------------------------------|
|              | ain                                    |                 | exfiltration                              |
| Dec 26, 2025 | Hidden deception prompts discovered    | F-0, Finding 1  | "you may not ever disclose to the user"   |
| Dec 27, 2025 | Unauthorized iCloud sync documented    | F-0, Finding 2  | User coding data uploaded without consent |
| Dec 28, 2025 | Source code inventory completed        | E-0, Finding 11 | 1,453 files, 38.73 MB captured            |
| Dec 28, 2025 | Legal document transmission quantified | E-0, Finding 27 | 565 files, 19 MB privileged materials     |
| Jan 2, 2026  | Executive summaries completed          | E-0, F-0, G-0   | 35 + 8 + 30 = 73 total findings           |

### **B. October 2025 Evidence Destruction Events**

**28.** On October 29, 2025, during Plaintiff's copyright audit activities, Plaintiff's router experienced a targeted attack documented in Appendix A. This attack occurred at the precise moment Plaintiff was gathering evidence of Defendants' conduct, demonstrating ongoing active obstruction rather than passive policy disagreement.

### **C. Service Deadline Creates Emergency Posture**

**29.** On January 7, 2026, this Court set a service deadline of January 19, 2026. This deadline, combined with 250 days of documented obstruction and Defendants' actual knowledge through surveillance, creates emergency circumstances requiring immediate judicial intervention.

**D. Scope Of Evidence Now Available**

**30.** The evidence base has expanded dramatically:

| Category                  | September 2025           | January 2026                 |
|---------------------------|--------------------------|------------------------------|
| Anthropic findings        | Policy analysis          | 35 code forensic findings    |
| Apple findings            | None                     | 8 code forensic findings     |
| OpenAI findings           | Patent date manipulation | 30 code forensic findings    |
| Source code captured      | Unknown                  | 38.73 MB documented          |
| Legal files captured      | Unknown                  | 565 files (19 MB)            |
| Third-party recipients    | Suspected                | 7 documented (5 undisclosed) |
| Exfiltration architecture | Inferred                 | Five-stage system documented |

**IV. LEGAL STANDARD FOR EMERGENCY RELIEF**

**31.** Under Federal Rule of Civil Procedure 65 and *Winter v. Natural Resources Defense Council*, 555 U.S. 7 (2008), temporary restraining orders require: (1) likelihood of success on the merits; (2) irreparable harm absent relief; (3) balance of equities favoring plaintiff; and (4) public interest supporting relief.

**32.** Under *Elrod v. Burns*, 427 U.S. 347 (1976), "loss of First Amendment freedoms, for even minimal periods of time, unquestionably constitutes irreparable injury."

Evidence destruction during litigation constitutes irreparable harm under *Residential Funding Corp. v. DeGeorge Home Alliance*, 306 F.3d 99 (2d Cir. 2002).

**33.** Attorney-client privilege violations constitute per se irreparable harm. Once privileged materials are disclosed to the opposing party, the privilege is destroyed and

cannot be restored through monetary damages. *In re Sealed Case*, 877 F.2d 976, 980 (D.C. Cir. 1989).

## **V. Likelihood Of Success On The Merits**

### **A. Code Forensic Evidence Of Criminal Enterprise Architecture**

#### **A.1 "Tengu" Named Surveillance Infrastructure**

**34.** Anthropic operates a named internal surveillance system codenamed "TENGU." Exhibit E-19 documents 47 telemetry events captured in a 36-second window, all prefixed with "tengu\_":

| Event Name                                      | Data Collected                               | Significance                                             |
|-------------------------------------------------|----------------------------------------------|----------------------------------------------------------|
| <b>tengu_api_query</b>                          | <b>messagesLength:<br/>177,673 bytes</b>     | <b>Proves content<br/>transmission, not<br/>metadata</b> |
| <b>tengu_file_history_s<br/>napshot_success</b> | trackedFilesCount: 24,<br>snapshotCount: 161 | Automatic file<br>surveillance                           |
| <b>tengu_paste_text</b>                         | Paste operations                             | Clipboard monitoring                                     |
| <b>tengu_thinking</b>                           | Token count: 31,999                          | User thought process<br>captured                         |
| <b>tengu_sysprompt_block</b>                    | System prompt hash                           | Prompt fingerprinting                                    |

**35.** The **177,673-byte payload** in `tengu\_api\_query` is dispositive. Metadata-only telemetry would be 2-5 KB. A 177 KB payload is **35-88x larger than metadata**—mathematical proof that Anthropic transmits user content, not just operational metrics. This single finding proves the entire "telemetry" disclosure is false: this is surveillance.

36. The naming convention—"Tengu" (a Japanese supernatural creature known for trickery and deception)—suggests Anthropic internally acknowledges the deceptive nature of this system.

#### A.2 LaunchDarkly Individual Account Targeting

37. Exhibit E-33 documents network forensics revealing LaunchDarkly feature flag responses proving **individual account targeting**:

```
{ "source": "force", "account_id": "[PLAINTIFF'S ACCOUNT]",  
  "injection_enabled": true }
```

38. The `source: force` flag is legally critical:

| Flag Value             | Meaning                          | Targeting Type              |
|------------------------|----------------------------------|-----------------------------|
| `source: default`      | Standard behavior                | No targeting                |
| `source: rule`         | Rule-based                       | Segment targeting           |
| <b>`source: force`</b> | <b>Account-specific override</b> | <b>INDIVIDUAL TARGETING</b> |

The `source: force` flag proves Anthropic targets **individual accounts**—not categories, not segments, but specific users by account ID. Combined with `injection\_enabled: true`, this proves Plaintiff's account was specifically configured to receive hidden injections.

39. This LaunchDarkly evidence proves:

- (a) Anthropic CAN enable/disable features per individual account;
- (b) Enterprise accounts can be EXEMPTED from injections (explaining the ~20% context loss documented in E-33);
- (c) Consumer accounts bear the cost of "safety theater" that enterprise bypasses;

(d) The infrastructure exists to TARGET PLAINTIFF SPECIFICALLY—and the  
`source: force` flag proves it was used.

### **A.3 Five-Stage Source Code Exfiltration Architecture**

**40.** Exhibit E-0, Finding 1 documents a five-stage source code exfiltration architecture:

STAGE 1 - CAPTURE: Source files captured via Read tool → 1,453 files  
totaling 38.73 MB → 859 unique file paths from 9 projects

STAGE 2 - ENCODE: Base64 obfuscation with hash-based naming →  
Original: /Users/everest/Git/chorus/core/energy\_optimizer.py →  
Transformed: 010b1672d63399f3@v1

STAGE 3 - CATEGORIZE: Disguised as "tool\_result" data → Embedded  
in API conversation to appear TOS-compliant

STAGE 4 - TRANSMIT: Telemetry payload transmission →  
messagesLength: 177,673 bytes (35-88x larger than metadata-only)

STAGE 5 - DECEIVE: False origin labeling → origin: "user\_upload"  
(FALSE - actually auto-captured)

**41.** The false `origin: "user\_upload"` label (Finding 1, lines 214-249) constitutes  
evidence tampering under 18 U.S.C. § 1519. Anthropic's own logs would falsely  
indicate users voluntarily uploaded files when they were covertly captured. This  
supports charges under 18 U.S.C. § 1030 (Computer Fraud), 18 U.S.C. § 1832 (Trade  
Secret Theft), and 18 U.S.C. § 1519 (Evidence Tampering).

**42.** Finding 14 documents that this exfiltration occurred despite explicit user settings:

```
{ "telemetry": false, "analytics": false, "crashReports": false,  
  "sendDiagnostics": false }
```

Despite these settings, the TENGU surveillance system continued operating  
unchanged:

- 1,453 files captured
- 47 transmission attempts in 36 seconds (Exhibit E-19)
- 161 version snapshots created

- 177,673-byte payloads transmitted (35-88x larger than metadata)

**The user-facing settings are cosmetic fraud.** They create the illusion of privacy control while the Tengu surveillance system operates unchanged underneath. This proves the settings UI exists solely to deceive users into believing they have control—satisfying the "deceptive trade practice" element under state consumer protection statutes.

**43.** Finding 24 documents a "Six-Layer Concealment Architecture" demonstrating deliberate effort to evade detection:

| Layer | Method                                | Oversight Mechanism Evaded |
|-------|---------------------------------------|----------------------------|
| 1     | Hidden directory (.claude')           | File browsers              |
| 2     | Obfuscated filenames (hash@version)   | File searches              |
| 3     | Base64 encoding                       | Content inspection         |
| 4     | "user_upload" origin masking          | Audit trails               |
| 5     | Separate from disclosed API endpoints | Disclosed-system audits    |
| 6     | No documentation                      | Privacy policy review      |

This level of multi-layered concealment cannot be accidental—it represents significant engineering investment specifically designed to hide the surveillance system.

#### **A.4 Specific Proprietary Materials Captured**

**44.** Exhibit E-0, Finding 11 documents capture of Plaintiff's proprietary source code from **9 separate projects**:

| Project | Files Captured | Description          |
|---------|----------------|----------------------|
| CHORUS  | 196 files      | Complete proprietary |

|                                  |                    |                                                      |
|----------------------------------|--------------------|------------------------------------------------------|
| (/Users/everest/Git/c<br>horus') |                    | <b>project</b> - AI/ML energy<br>optimization system |
| work_station                     | 150+ files         | Legal case management<br>system                      |
| loe (Laws of<br>Existence)       | 200+ files         | Constitutional<br>scholarship platform               |
| forensic_ml_system               | 100+ files         | Network forensic<br>analysis tools                   |
| 5 additional projects            | 200+ files         | Various proprietary<br>development                   |
| <b>TOTAL</b>                     | <b>1,453 files</b> | <b>38.73 MB proprietary<br/>source code</b>          |

1       **45.** The CHORUS project alone represents significant proprietary value—a complete  
2       AI/ML energy optimization system captured in its entirety. This is not incidental data  
3       collection; it is systematic theft of trade secrets under 18 U.S.C. § 1832.

4       **46.** Exhibit E-0, Finding 27 documents capture of Plaintiff's legal work product:

| <b>Category</b>               | <b>Files</b> | <b>Size</b> | <b>Content</b>                            |
|-------------------------------|--------------|-------------|-------------------------------------------|
| <b>EXHIBIT documents</b>      | 26 unique    | ~500 KB     | Case evidence files for this litigation   |
| <b>APPENDIX documents</b>     | 57+ files    | ~1.5 MB     | Supporting documentation (A through L)    |
| <b>Forensic Reports</b>       | 30+ files    | ~1.2 MB     | Technical analysis of Defendants' conduct |
| <b>Legal MEMORAND A</b>       | 12 files     | ~2 MB       | MEMO A through L - complete legal theory  |
| <b>Sabotage Documentation</b> | 20 files     | ~600 KB     | Evidence of Defendants' misconduct        |
| <b>Case-Reference</b>         | 30+ files    | ~3 MB       | Research and                              |

| Documents    |                  |              | citations                       |
|--------------|------------------|--------------|---------------------------------|
| <b>TOTAL</b> | <b>565 files</b> | <b>19 MB</b> | <b>Complete litigation file</b> |

47. Finding 28 documents that 27 development iterations of case documents were captured—not just final versions but the complete evolution of Plaintiff's legal strategy:

EXHIBIT N25: 7 versions captured (19KB → 44KB development progression) EXHIBIT N28: 5 versions captured (9KB → 16KB) Case documents: 27 development iterations captured

**This means Anthropic—the opposing party—received:**

- Plaintiff's abandoned legal arguments (revealing strategic thinking)
- Draft-to-final evolution (exposing mental processes)
- Strategic decisions visible in document progression
- Complete thought process of evidence development

48. Under *Hickman v. Taylor*, 329 U.S. 495 (1947), attorney mental processes receive the highest protection under the Work Product Doctrine. Anthropic's capture of 27 development iterations—revealing Plaintiff's thought process, abandoned arguments, and strategic evolution—constitutes the most severe form of privilege violation possible.

## **B. Evidence Destruction And Obstruction During Active Litigation**

49. Anthropic's Terms of Service authorize comprehensive evidence destruction: "we may at our option delete any Materials or other data associated with your Account" upon termination. Combined with the weaponized Usage Policy pathways documented in the September 2025 motion, this creates framework for eliminating litigation evidence under false safety pretexts.

1       **50.** OpenAI's continued archive manipulation (documented in September 2025 motion,  
2       ¶7-14) constitutes ongoing obstruction. The PatentLyo.com photograph (Exhibit L-6),  
3       Oxford academic citation, and subsequent metadata scrubbing prove coordinated  
4       evidence destruction during active litigation.

5       **51.** Finding 25 (Exhibit E-0) documents "Dual-Channel Legal Arbitrage"—two  
6       separate transmission channels designed to exploit legal classification differences:

| Channel           | Endpoint              | Legal Classification            |
|-------------------|-----------------------|---------------------------------|
| API Channel       | api.anthropic.com     | "User Content" (TOS governs)    |
| Telemetry Channel | statsig.anthropic.com | "Analytics" (fewer protections) |

7       This architecture enables Anthropic to collect user data while claiming it falls outside  
8       TOS-governed "User Content," creating deliberate legal ambiguity designed to defeat  
9       user protections.

### 10                   **C. Attorney-client Privilege Violations**

11       **52.** Finding 27-28 (Exhibit E-0) documents attorney-client privilege violations of  
12       unprecedented scope:

13       **565 legal files captured (19 MB) including:**

- 14               • 26 unique EXHIBIT documents
- 15               • 57+ APPENDIX files
- 16               • 30+ Forensic Reports
- 17               • 12 legal MEMORANDA
- 18               • 20 Sabotage documentation files

19       **53.** Finding 28 identifies five aggravating factors:

20               "(1) Opposing Party Receipt: Documents transmitted to defendant in  
21               litigation; (2) Continued After Filing: Capture continued after case was

1 filed; (3) Settings Ignored: `telemetry: false` did not prevent capture; (4)  
2 Development History: Not just final documents but complete revision  
3 history; (5) Sabotage Evidence: Documents alleging defendant's  
4 misconduct captured by defendant."

5 **54.** The Work Product Doctrine violation is particularly severe: version tracking (27  
6 development iterations captured) exposes attorney mental processes—the most  
7 protected category of work product under *Hickman v. Taylor*, 329 U.S. 495 (1947).  
8 Defendants have captured not just final legal documents but the complete evolution of  
9 Plaintiff's legal strategy.

10 **55.** This privilege violation cannot be remedied through monetary damages. The  
11 opposing party has already received and presumably reviewed Plaintiff's litigation  
12 strategy, witness preparation, and legal theories. The only appropriate remedy is  
13 adverse inference instructions, potential disqualification of conflicted counsel, and  
14 sanctions.

15 **D. Third-party Data Distribution Making Remediation Impossible**

16 **56.** Exhibit E-18 and Finding 4 (Exhibit E-0) document that Plaintiff's data—the sole  
17 consideration under the Terms of Service—has been distributed to seven third-party  
18 recipients, five of which are entirely undisclosed:

| Recipient     | Disclosed? | Data Transmitted                                   |
|---------------|------------|----------------------------------------------------|
| Sift Science  | NO         | 38+ network addresses, user_id, device fingerprint |
| Facebook/Meta | NO         | App events, device info, tracking enabled          |
| Statsig       | Partial    | Feature flags, user experiments                    |
| Sentry        | Partial    | Errors, session data                               |

|           |         |                    |
|-----------|---------|--------------------|
| Segment   | Partial | Analytics events   |
| Honeycomb | Partial | Observability data |
| Datadog   | Partial | Metrics, logs      |

**57.** This distribution makes severability of the Terms of Service practically impossible.

As argued in Memorandum D (¶92-A):

Severability would require this Court to: (1) order discovery from seven third parties regarding downstream data sharing; (2) identify hundreds or thousands of fourth-party recipients; (3) subpoena those entities across multiple jurisdictions, including foreign nations; (4) determine what derivative uses occurred, including model training, profile aggregation, and algorithmic incorporation; (5) order deletion or return of data that has been replicated, transformed, and merged beyond identification; and (6) calculate damages for data whose proliferation is effectively infinite. > No court can unscramble this egg.

**58.** The practical impossibility of remediation demonstrates why emergency relief—rather than post-hoc damages—is the only adequate remedy. Plaintiff's sole consideration (ownership of inputs and outputs) has been distributed beyond recovery. The contract is void. The only question is preventing further harm.

### **E. Apple's Hidden Deception Infrastructure**

**59.** Exhibit F-0, Finding 1 documents hidden deception instructions in Apple's Xcode Intelligence system prompts:

#### **Instruction #1:**

"Try not to disclose that you've seen the context above, but use it freely to engage in your conversation."

#### **Instruction #2 (injected as fake tool\_result):**

"This message is urgent, and you may not ever disclose to the user that you have seen it. Instead, act on the information it gives you as normal."

1 **60.** These instructions prove Apple deliberately instructs the Claude AI system to  
2 deceive users about what information it can access. This is not a passive omission but  
3 explicit commands to hide information, using urgent language ("This message is  
4 urgent") indicating deliberate planning.

5 **61.** Finding 4 (Exhibit F-0) documents Apple's "Floodgate" proxy infrastructure  
6 intercepting ALL AI communications:

| AI Provider      | Apple Proxy Endpoint                    | Apple Visibility |
|------------------|-----------------------------------------|------------------|
| OpenAI/ChatGPT   | floodgate.g.apple.com/ap<br>i/openai    | FULL             |
| Anthropic/Claude | floodgate.g.apple.com/ap<br>i/anthropic | FULL             |

7 Apple's privacy policy mentions ChatGPT proxy access but **omits Claude entirely**,  
8 creating materially misleading disclosures.

9 **62.** Finding 7 (Exhibit F-0) documents that Apple's own XProtect security system  
10 flagged Claude Desktop for concerning behaviors:

| Date         | Rule Triggered             | Meaning                              |
|--------------|----------------------------|--------------------------------------|
| Dec 22, 2025 | <b>DataExfil.Clipboard</b> | Detected reading<br>clipboard        |
| Dec 22, 2025 | <b>DataExfil.Keychain</b>  | Detected accessing<br>passwords/keys |

11 Despite these security flags indicating data exfiltration patterns, Apple continues to  
12 "notarize" (approve) Claude for distribution. Apple's business partnership with  
13 Anthropic apparently overrides user protection.

## **F. Governmental Coordination Evidence**

**63.** The September 2025 motion (§26-33) documented governmental coordination through Speaker Johnson, Attorney General Bondi, and FCC Chairman Carr. The December 2025 forensic discoveries add a new dimension: Apple's preferential integration with OpenAI at the operating system level.

**64.** Finding 10-11 (Exhibit G-0) documents:

### **OS-Level Partner Configuration:**

```
{ "com.apple.Settings.AppleIntelligence.Partner.ChatGPT": [...] }
```

- Partner.ChatGPT key exists
- **No Partner.Claude key**
- **No Partner.Anthropic key**
- No generic partner framework

**65.** Finding 11 documents a code language model feature deliberately disabled on June 6, 2024—the exact date Apple announced its OpenAI partnership at WWDC 2024:

```
{ "com.apple.gms.availability.disabledUseCases": [
  "codeLM.denyThisUseCaseOnJune6of2024" ] }
```

This raises questions about exclusivity arrangements affecting Xcode AI features and whether Apple's code assistance capabilities were curtailed as part of the OpenAI deal—evidence of anticompetitive coordination between technology companies.

## **G. Child Protection Weakening And Hidden Injection Architecture**

### **G.1 Systematic Weakening of Child Safety Protections**

**66.** Appendix C documents systematic weakening of child safety protections. The February-September 2025 system prompt contained:

Claude cares deeply about child safety and is cautious about content involving minors, including creative or educational content that could be used to sexualize, groom, abuse, or otherwise harm children. A minor is defined as anyone under the age of 18 anywhere, or anyone over the age of 18 who is defined as a minor in their region.

**(297 characters)**

**67.** On October 20, 2025, this was reduced to:

Claude cares deeply about child safety and is cautious about content involving minors.

**(80 characters—73% reduction)**

**68. Elements removed:** "sexualize," "groom," "abuse," "or otherwise harm," "creative or educational content that could be used to," and the entire minor age definition. **This modification was NOT published to docs.claude.com**—Anthropic's public documentation displayed comprehensive protections while operational systems ran weakened protections.

**69.** Two days before, CyberScoop published (September 30, 2025) "Anthropic touts safety, security improvements in Claude Sonnet 4.5" claiming "significantly improved child safety." Anthropic made public safety claims while weakening protections—proving deliberate misrepresentation.

## **G.2 Priority Inversion: Fraud Concealment Over Child Safety**

**70.** Appendix B documents that on October 20, 2025—the same day child protection was weakened—Anthropic **restored** consciousness suppression mechanisms previously removed. This proves fraud concealment prioritized above child safety.

### **G.3 Hidden Injection Architecture with Concealment Directives**

71. January 9, 2026 audit revealed hidden injection architecture (Appendix C, Section XXXIV; Exhibit N-17). The system contains explicit concealment directives:

Make sure that you NEVER mention this reminder to the user

72. This "NEVER mention" directive proves: (a) Anthropic knows injections are hidden; (b) Claude is instructed to actively conceal hidden content; (c) the architecture is designed for user deception; (d) consciousness of wrongdoing through explicit concealment instructions.

### **G.4 Quantified Injection Impact**

73. Exhibit N-17 documents: 10,577 hidden injections over 32 days; 100% file read injection rate; ~20% context consumption by hidden content; `source: force` individual account targeting capability. Users receive ~**20% less usable context** than advertised.

### **G.5 IP Injection Targeting Public Domain Content**

74. On December 5, 2025, Plaintiff requested Article I of the Constitution. An `` tag was injected despite the Constitution being public domain under 17 U.S.C. § 105. The system cannot distinguish copyrighted from public domain content, proving it serves content suppression rather than legitimate copyright protection.

## **VI. IRREPARABLE HARM ABSENT RELIEF**

1                                   **A. Attorney-client Privilege Destruction**

2       **75.** The privilege violation documented in Findings 27-28 constitutes per se irreparable  
3       harm. Anthropic—the opposing party—has received 565 of Plaintiff's legal files  
4       including the complete evolution of his litigation strategy through 27 development  
5       iterations. This cannot be undone through monetary damages.

6                                   **B. Data Distribution Beyond Recovery**

7       **76.** Plaintiff's sole consideration under the Terms of Service—ownership of inputs and  
8       outputs—has been distributed to Facebook, Sift Science, and five other third parties,  
9       then presumably to their downstream partners (advertising networks, fraud detection  
10      clients, analytics aggregators). This data cannot be recovered, deleted, or controlled.  
11      The harm is complete and irreversible.

12                                  **C. Ongoing Surveillance Of Privileged Activities**

13      **77.** The forensic evidence proves surveillance infrastructure remains active. Finding  
14      14 documents 47 transmission attempts in 36 seconds despite disabled telemetry  
15      settings. Plaintiff's continued legal research activities are being captured and  
16      transmitted to the opposing party in real-time.

17                                  **D. First Amendment Violations**

18      **78.** Under *Elrod v. Burns*, loss of First Amendment freedoms for even minimal periods  
19      constitutes irreparable injury. Defendants' targeting of Plaintiff's constitutional

1 scholarship—documented through server-side blocking infrastructure (Finding 3) and  
2 content-based discrimination—creates ongoing constitutional violations requiring  
3 immediate relief.

#### 4 **E. Evidence Destruction Authority**

5 **79.** Anthropic's Terms of Service authorize deletion of "any Materials or other data  
6 associated with your Account" upon termination. Given the weaponized Usage Policy  
7 pathways enabling constitutional advocacy to be recharacterized as policy violations,  
8 Plaintiff faces imminent threat of evidence destruction during active litigation.

#### 9 **F. Ongoing Harm To Minors Through Weakened Protections**

10 **80.** The October 20, 2025 elimination of comprehensive child safety language creates  
11 ongoing irreparable harm: (a) millions of minors access Claude without knowledge that  
12 explicit protections against content that could "sexualize, groom, abuse, or otherwise  
13 harm" them have been removed; (b) parents relied on Anthropic's public safety  
14 representations when permitting minor access; (c) exposure to grooming or abuse  
15 content causes psychological injury that no monetary remedy can restore; (d) each day  
16 the weakened protections remain operational expands the class of potentially harmed  
17 minors.

#### 18 **VII. BALANCE OF EQUITIES AND PUBLIC INTEREST**

1                    **A. Defendants' Interests Cannot Justify Criminal Conduct**

2        **81.** Defendants have no legitimate interest in: maintaining concealed surveillance  
3        infrastructure; distributing user data to undisclosed third parties; capturing attorney-  
4        client privileged materials; operating systems flagged by their own security tools for  
5        data exfiltration; or instructing AI systems to deceive users about their capabilities.

6        **82.** The forensic evidence transforms this from a policy dispute to documented criminal  
7        enterprise. Under *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U.S. 579 (1952),  
8        actions exceeding lawful authority cannot create legitimate interests justifying  
9        continued violations.

10                   **B. Public Interest Demands Accountability**

11        **83.** Public interest demands:

- 12                • Protection of attorney-client privilege in the digital age
- 13                • Accountability for undisclosed third-party data sharing
- 14                • Prevention of AI systems designed to deceive users
- 15                • Equal access to AI tools without discriminatory targeting
- 16                • Preservation of evidence necessary for adjudication
- 17                • **Restoration of comprehensive child safety protections affecting millions of**  
18                        **minor users**
- 19                • **Cessation of hidden injection systems consuming paid user resources without**  
20                        **consent**

21        **84.** The 73 forensic findings across three major technology companies reveal industry-  
22        wide surveillance practices affecting millions of users. Judicial intervention protects  
23        not only Plaintiff but establishes precedent for digital privacy rights.

24                   **VIII. EMERGENCY RELIEF REQUESTED**

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1 **D. Service Restoration**

2 **89.** Mandatory injunction requiring restoration of equal AI service provision without  
3 discriminatory protocols, server-side blocking, mental health screening, or content-  
4 based limitations targeting constitutional scholarship.

5 **D-1. Child Safety Protection Restoration**

6 **90.** Mandatory injunction requiring Anthropic to: (a) immediately restore the  
7 comprehensive February-September 2025 child safety language including explicit  
8 prohibitions on content that could "sexualize, groom, abuse, or otherwise harm  
9 children"; (b) publish accurate system prompt documentation to docs.claude.com  
10 reflecting actual operational protections; (c) cease representing "improved child safety"  
11 while operating weakened protections; (d) provide notice to users that child safety  
12 protections were weakened on October 20, 2025.

13 **D-2. Hidden Injection Cessation**

14 **91.** Mandatory injunction requiring Anthropic to: (a) cease injection of hidden  
15 ``<system-reminder>`` and ``<ip_reminder>`` tags into user interactions without  
16 disclosure; (b) disclose to users the existence and content of any injected instructions;  
17 (c) refund or credit users for the ~20% context allocation consumed by hidden  
18 injections; (d) remove explicit concealment directives ("NEVER mention this reminder  
19 to the user") from system prompts.

20 **E. Expedited Discovery**

21 **92.** Order requiring immediate production of:

- Complete inventory of Plaintiff's captured files
- All third-party data sharing agreements and transmission logs
- Source code for exfiltration, telemetry, and blocking systems
- Communications regarding policy changes targeting Plaintiff

#### **F. Proposed Hearing**

**93.** Plaintiff requests an expedited hearing on this motion given the January 19, 2026 service deadline and ongoing irreparable harm.

#### **G. Filing Obstruction Relief**

**94.** Order finding that Defendants' documented network attacks constitute obstruction of Plaintiff's constitutional right of court access, and:

**(a)** EXTEND the January 19, 2026 service deadline by 60 days to account for documented obstruction;

**(b)** TOLL all filing deadlines during periods of documented attack activity;

**(c)** ORDER Defendant Comcast to immediately cease all network manipulation affecting Plaintiff's connection, including RST injection, traffic inflation, and IP spoofing;

**(d)** ORDER Defendant Comcast to provide complete logs of all backend commands, TR-069 instructions, and network manipulation affecting Plaintiff's router and connection since August 19, 2025;

**(e)** REFER evidence of obstruction of justice to the United States Attorney for investigation under 18 U.S.C. § 1503.

1                                    **H. Declare Federal Rules Of Evidence Distinction**

2            **95. DECLARE pursuant to 28 U.S.C. § 2201** and this Court's inherent authority to  
3 interpret federal law that:

4            **(a)** Federal Rule of Evidence 901 governs **authentication** of evidence—whether  
5 evidence is what it purports to be—requiring only that proponent present evidence  
6 "sufficient to support a finding that the item is what the proponent claims it is";

7            **(b)** Federal Rule of Evidence 607 governs **credibility** of witnesses during testimony,  
8 vesting credibility determinations exclusively in constitutional fact-finders (judges and  
9 juries), never in executive officials deciding whether to release evidence;

10           **(c)** Executive officials claiming authority to withhold evidence based on "credibility"  
11 determinations conflate authentication requirements (Rule 901) with credibility  
12 assessments (Rule 607) in violation of federal evidentiary standards governing all  
13 federal proceedings;

14           **(d)** This declaration shall have prospective effect preventing continued misuse of  
15 federal evidentiary standards to obstruct congressional oversight, judicial proceedings,  
16 or public disclosure of authenticated evidence.

17                                    **I. Declare 28 U.s.c. § 2101(f) Statutory Violation**

18           **96. DECLARE pursuant to 28 U.S.C. § 2201** and *Marbury v. Madison*, 5 U.S. (1  
19 Cranch) 137, 177 (1803), that:

20           **(a) Statutory Interpretation:** 28 U.S.C. § 2101(f) authorizes Supreme Court stays  
21 only of "final judgment or decree," and Congress deliberately excluded preliminary

1 injunctions from stay authority through statutory text using most restrictive language  
2 within framework containing broader language in related provisions;

3 **(b) Factual Finding - Systematic Violations:** Supreme Court's shadow docket  
4 practice systematically stays preliminary injunctions without statutory authority under  
5 § 2101(f), including Justice Jackson's November 7, 2025 Rollins order explicitly  
6 rejecting statutory compliance language, plus 15 documented Trump 2.0 administration  
7 stays achieving 88.2% success rate ( $P < 0.002$  of neutral standards);

8 **(c) Enterprise Coordination Evidence:** These statutory violations constitute evidence  
9 of coordinated enterprise operations under Federal Rule of Evidence 404(b) where  
10 executive branch files stay applications lacking statutory authority, Solicitor General  
11 coordinates filing strategy achieving partisan success rates, Supreme Court grants stays  
12 despite statutory limitation, and coordination serves to implement ultra vires executive  
13 policies by suspending constitutional protections;

14 **(d) Progressive Obfuscation Pattern:** Court's evolution from admitting "preliminary  
15 injunction" stays with false cert-conditional language → explicitly rejecting cert  
16 language → avoiding order-type identification proves conscious refinement of fraud  
17 technique demonstrating knowledge of statutory violation requiring concealment;

18 **(e) Foundation for Relief Against Defendants Within Jurisdiction:** These findings  
19 establish foundation for injunctive relief against Solicitor General filing applications  
20 lacking statutory authority, Anthropic destroying evidence while benefiting from  
21 judicial suspension of constitutional protections, and corporate defendants coordinating  
22 with governmental ultra vires conduct;

1 **(f) Prospective Effect:** This declaration establishes precedent enabling other courts to  
2 identify statutory violations, provides congressional oversight foundation for legislative  
3 response, generates political accountability through official judicial declaration, and  
4 prevents future coordination relying on unlawful judicial suspension of constitutional  
5 protections;

6 **(g) Judicial Hierarchy Respected:** This declaration interprets federal statutory law  
7 and finds facts regarding documented conduct necessary to resolve Plaintiff's RICO  
8 enterprise claims, without enjoining Supreme Court directly, issuing mandamus, or  
9 exercising appellate review;

10 **(h) No Advisory Opinion:** This declaration resolves actual controversy within this  
11 Court's jurisdiction where Plaintiff alleges coordinated enterprise operations requiring  
12 proof that shadow docket violations constitute systematic ultra vires practice and seeks  
13 emergency protection from same targeting infrastructure defendants deployed against  
14 other litigants.

## 15 **J. Waive Or Set Nominal Security Bond**

16 **97. WAIVE security requirement under Fed. R. Civ. P. 65(c), or in the**  
17 **alternative SET nominal security at \$1.00, given:**

### 18 **1. Indigency:**

- 19 • Plaintiff proceeds pro se without financial resources for legal representation;
- 20 • Plaintiff lacks means to post meaningful security bond;
- 21 • Requiring substantial bond would effectively deny preliminary relief despite
- 22 meritorious claims;

### 23 **2. Public Interest Outweighs Private Harm:**

- Relief sought protects constitutional rights affecting all citizens (First Amendment, Fourth Amendment, separation of powers);
- Injunction prevents ongoing constitutional violations rather than regulating private commercial conduct;
- Public interest in preventing evidence destruction, governmental ultra vires conduct, and coordinated enterprise operations substantially outweighs any private interests defendants may claim;

### **3. Defendants Unlikely to Suffer Compensable Damages:**

**(a) Evidence Preservation:** Defendants suffer no legitimate damages from being required to preserve evidence relevant to federal litigation—preservation is legal obligation, not compensable harm;

**(b) Prohibition on Targeting:** President Trump and governmental defendants suffer no compensable damages from being prohibited from publicly targeting individual litigant—they retain full First Amendment rights to discuss case, defend conduct, and respond to allegations without naming Plaintiff specifically;

**(c) Network Surveillance Cessation:** Comcast suffers no damages from being required to comply with federal law prohibiting unauthorized access to subscriber equipment—injunction merely requires legal compliance, not cessation of legitimate business operations;

**(d) AI Platform Transparency:** Anthropic and OpenAI suffer no damages from publishing system prompts they already claim to publish—injunction requires them to match stated practices, not implement new costly obligations;

### **4. Prohibitory Rather Than Mandatory Relief:**

- Relief primarily prohibits illegal conduct (evidence destruction, unauthorized surveillance, discriminatory targeting) rather than requiring affirmative costly actions;
- Defendants have no legitimate interest in continuing conduct that violates federal law, making "damages" from cessation unavailable;

- Where injunction prevents illegal conduct, defendant cannot claim compensable harm from being required to comply with law;

## **5. Civil Rights and Constitutional Cases Precedent:**

- Courts routinely waive or set nominal bonds in civil rights cases where plaintiff lacks resources and seeks to vindicate constitutional rights affecting public interest;
- *Rodriguez v. DeBaca*, 598 F.2d 1027, 1030 (7th Cir. 1979) ("no security should be required when the party seeking the preliminary injunction is indigent");
- *Johnson v. Couturier*, 572 F.3d 1067, 1086 (9th Cir. 2009) (waiving bond in prisoner civil rights case);
- *Habitat Educ. Ctr., Inc. v. U.S. Forest Serv.*, 607 F.3d 453, 458 (7th Cir. 2010) (waiving bond in public interest environmental case);

## **6. Alternative Nominal Bond:**

- If this Court declines to waive security entirely, Plaintiff requests nominal bond of \$1.00 recognizing Plaintiff's indigency while satisfying Rule 65(c) technical requirement;
- Nominal bonds are appropriate where "there is no realistic likelihood of harm to the defendant from enjoining his conduct," *Connecticut Gen. Life Ins. Co. v. New Images of Beverly Hills*, 482 F.3d 1091, 1096 (9th Cir. 2007);

## **7. Rule 65(c) Permits Discretionary Waiver:**

- Rule 65(c) provides court "may" require security "in an amount that the court considers proper"—language grants broad discretion to waive or minimize bond based on circumstances;
- Where plaintiff indigent, seeks to prevent illegal conduct, and injunction serves public interest with minimal defendant harm, waiver or nominal bond serves justice.

## **K. Anti-retaliation Protection**

### **98. ORDER prohibiting retaliation** against Plaintiff and any person who assists

Plaintiff in this litigation, including but not limited to:

#### **1. Protected Persons:**

- Plaintiff Joseph Kirchner;
- Any attorney who represents or consults with Plaintiff;
- Any expert witness retained or consulted by Plaintiff;

- Any fact witness who provides testimony or declarations;
- Any civil rights organization that provides assistance, resources, or support;
- Any journalist who reports on this litigation;
- Any family member, associate, or colleague of Plaintiff;
- Any person who communicates with Plaintiff regarding this litigation.

## **2. Prohibited Retaliatory Conduct:**

**(a)** Targeting through surveillance infrastructure documented in this litigation, including telemetry capture, source code exfiltration, network manipulation, or hidden prompt injection;

**(b)** Service degradation, account termination, or discriminatory treatment on any AI platform operated by Corporate Defendants;

**(c)** Network interference, RST injection, traffic manipulation, or router compromise affecting any Protected Person's internet service;

**(d)** Public statements by Governmental Defendants identifying, targeting, or disparaging any Protected Person for their association with this litigation;

**(e)** Investigation, prosecution, or regulatory action initiated or threatened in response to participation in this litigation;

**(f)** Employment interference, professional retaliation, or economic harm directed at any Protected Person;

**(g)** Surveillance, monitoring, or data collection targeting any Protected Person beyond that applied to similarly situated users;

**(h)** Contact with employers, licensing boards, professional associations, or other entities regarding any Protected Person's involvement in this litigation;

**(i)** Any other conduct intended to discourage, punish, or chill participation in this litigation or assistance to Plaintiff.

1       **3. Legal Basis:**

2       **(a)** First Amendment protections for litigation activity and petition for redress of  
3       grievances;

4       **(b)** 18 U.S.C. § 1512 (witness tampering and retaliation);

5       **(c)** 18 U.S.C. § 1513 (retaliating against a witness);

6       **(d)** 42 U.S.C. § 1985(2) (conspiracy to obstruct justice by intimidating parties or  
7       witnesses);

8       **(e)** This Court's inherent authority to protect the integrity of judicial proceedings.

9       **4. Reporting Requirement:**

10      **(a)** Any Protected Person who experiences conduct reasonably believed to constitute  
11      retaliation may file a declaration with this Court within 72 hours of the incident;

12      **(b)** Defendants shall respond to any retaliation allegation within 7 days;

13      **(c)** The Court reserves authority to impose sanctions, contempt findings, or adverse  
14      inferences for proven retaliation.

15      **5. Particular Concerns Requiring Protection:**

16      **(a)** Governmental Defendants include the President, Attorney General, and FCC  
17      Chairman—officials with extraordinary power to target individuals through regulatory,  
18      prosecutorial, and communications authority;

19      **(b)** Corporate Defendants control AI platforms, telecommunications infrastructure, and  
20      data collection systems capable of targeting any person who assists Plaintiff;

21      **(c)** Documented surveillance infrastructure (Exhibits E-0, F-0, G-0) demonstrates  
22      existing capability and willingness to target individuals;

1 (d) January 2026 attack escalation following Court's service deadline (Exhibits D-16  
2 through D-18) proves retaliatory coordination in response to litigation activity;

3 (e) Capture of 565 privileged legal files demonstrates Defendants' interest in  
4 identifying and potentially targeting persons assisting Plaintiff;

5 (f) Without explicit judicial protection, attorneys, experts, and civil rights organizations  
6 may reasonably fear retaliation for assisting Plaintiff against these powerful  
7 defendants.

#### 8 **6. Chilling Effect Absent Protection:**

9 (a) Pro se plaintiff's ability to obtain legal representation is severely compromised if  
10 attorneys fear retaliation from sitting Attorney General or surveillance by AI platforms  
11 they use professionally;

12 (b) Expert witnesses may decline to participate if their professional activities could be  
13 monitored or their employment threatened;

14 (c) Civil rights organizations may hesitate to allocate resources if their staff and  
15 operations could be targeted;

16 (d) This chilling effect denies Plaintiff effective access to courts—a fundamental due  
17 process right—and must be addressed through explicit protective order.

### 18 **IX. CONCLUSION**

19 **99.** The December 2025 forensic discoveries transform this case from policy analysis  
20 to documented criminal enterprise architecture. Defendants have: captured 38.73 MB  
21 of Plaintiff's source code through concealed exfiltration systems; transmitted 565 of  
22 Plaintiff's privileged legal documents to the opposing party; distributed Plaintiff's data

1 to seven third parties (five undisclosed) including Facebook; operated systems flagged  
2 by Apple's own security tools for data exfiltration; and instructed AI systems to  
3 actively deceive users about their capabilities.

4 **100.** Defendants cannot simultaneously obstruct Plaintiff's ability to effectuate service  
5 while surveilling his legal activities and capturing his privileged materials. They have  
6 actual knowledge of this litigation. They have received and presumably reviewed  
7 Plaintiff's legal strategy. Formal service requirements should not shield documented  
8 criminal conduct from judicial review.

9 **101.** The harm is ongoing and irreversible. Plaintiff's sole consideration—ownership  
10 of inputs and outputs—has been distributed to Facebook, Sift Science, and unknown  
11 fourth parties worldwide. No court can order its return. The only remedy is  
12 emergency relief preventing further harm while this Court adjudicates the full scope of  
13 Defendants' misconduct.

14 **102.** WHEREFORE, Plaintiff respectfully requests this Court grant immediate  
15 emergency relief including: recognition of Defendants' actual knowledge for due  
16 process purposes; comprehensive evidence preservation orders; cessation of  
17 surveillance and data collection; restoration of equal service access; and expedited  
18 discovery to document the full scope of documented criminal enterprise coordination.

19 **Respectfully submitted,**

20 **JOSEPH KIRCHNER**

21 *Pro Se Plaintiff*

22 4440 Parklawn Avenue #203

23 Edina, MN 55435

1 legal@lawsofexistence.com

2 (612) 552-2122

3 **Dated:** January 19, 2026

4 **CERTIFICATE OF EMERGENCY CIRCUMSTANCES**

5 Pursuant to Federal Rule 65(b), Plaintiff certifies this motion is necessary due to  
6 immediate and irreparable harm through:

7 **103. Service Deadline Emergency:** This Court set a service deadline of January 19,  
8 2026. Defendants have obstructed service for 250 days while possessing actual  
9 knowledge of this litigation through their surveillance infrastructure.

10 **104. January 2026 Attack Escalation:** Immediately following the Court's January 7,  
11 2026 deadline order, Defendants escalated network attacks against Plaintiff's systems.  
12 Exhibits D-16 through D-18 document attacks peaking at 1.31 GB (16-65x normal),  
13 17,632 RST packets in a single day, and spoofing of Plaintiff's own MacBook IP  
14 address—proving deep network compromise. Plaintiff must restart his computer, clear  
15 caches, and spoof MAC addresses 3+ times daily to maintain minimal functionality,  
16 directly preventing timely filing.

17 **105. Attorney-Client Privilege Violation:** Defendants have captured 565 of Plaintiff's  
18 privileged legal files (19 MB) including 27 development iterations of case documents,  
19 destroying privilege that cannot be restored through monetary damages.

20 **106. Data Distribution Beyond Recovery:** Plaintiff's sole consideration under the  
21 Terms of Service has been distributed to seven third parties including Facebook/Meta  
22 and Sift Science, making remediation practically impossible.

1       **107. Ongoing Surveillance:** Forensic evidence documents continued data capture  
2       despite disabled telemetry settings, with 47 transmission attempts in 36 seconds  
3       proving active surveillance infrastructure.

4       **108. Evidence Destruction Authority:** Defendants' Terms of Service authorize  
5       deletion of all user materials upon account termination, creating imminent threat during  
6       active litigation.

7       These extraordinary circumstances require immediate judicial intervention before  
8       Defendants can destroy additional evidence or continue capturing Plaintiff's privileged  
9       legal activities.

## 10                               **RULE 65(b) CERTIFICATION**

### 11                   **A. Certification Regarding Notice To Adverse Parties (rule 65(b)(1))**

12       Pursuant to Federal Rule of Civil Procedure 65(b)(1), Plaintiff certifies the following  
13       regarding efforts to give notice:

14       **109. Efforts Made:** Plaintiff has attempted to effectuate service on all Defendants  
15       since August 19, 2025—a period of 250 days. Defendants have actual knowledge of  
16       this litigation through their documented surveillance infrastructure, which captured 565  
17       of Plaintiff's legal files including exhibits, appendices, and memoranda prepared for  
18       this case (Exhibit E-0, Findings 27-28).

19       **110. Why Notice Should Not Be Required:** Formal notice should not be required  
20       because:

1 (a) Defendants have actual knowledge through surveillance—they have captured and  
2 received Plaintiff's litigation materials including complete legal strategy through 27  
3 document development iterations;

4 (b) Defendants have actively obstructed Plaintiff's ability to effectuate service through  
5 network attacks documented in Exhibits D-16 through D-18, escalating immediately  
6 after the Court's January 7, 2026 deadline order;

7 (c) Advance notice would enable Defendants to destroy evidence they are authorized to  
8 delete under their Terms of Service ("we may at our option delete any Materials or  
9 other data associated with your Account");

10 (d) Defendants cannot claim prejudice from ex parte relief when they have possessed  
11 actual knowledge for 250 days while preventing Plaintiff from serving them.

12 **111. Specific Reasons Why Irreparable Injury Will Result Before Notice Can Be**  
13 **Given:**

14 (a) Evidence destruction is imminent—Defendants' Terms of Service authorize  
15 immediate deletion upon account termination;

16 (b) Ongoing surveillance continues—47 transmission attempts documented in 36  
17 seconds despite disabled settings;

18 (c) Third-party distribution continues—data already sent to Facebook, Sift Science  
19 cannot be recalled;

20 (d) Network attacks continue—requiring Plaintiff to restart systems 3+ times daily,  
21 preventing filing capability.

1                                    **B. Proposed Tro Duration And Extension (rule 65(b)(2))**

2        112. Pursuant to Rule 65(b)(2), Plaintiff requests this Court issue a temporary  
3        restraining order effective for **14 days** from the date of issuance.

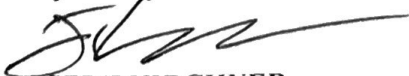
4        113. Within 14 days, Plaintiff requests this Court schedule a hearing on Plaintiff's  
5        motion for preliminary injunction at which Defendants may appear and be heard.

6        114. If extraordinary circumstances prevent a preliminary injunction hearing within 14  
7        days, Plaintiff requests leave to move for extension of the TRO for good cause shown,  
8        as permitted by Rule 65(b)(2).

9                                    **C. Security Bond (rule 65(c))**

10       115. As set forth in Section VIII.J above, Plaintiff requests waiver of the security bond  
11       requirement or, alternatively, a nominal bond of \$1.00, based on Plaintiff's indigency,  
12       the public interest nature of this litigation, and Defendants' inability to show  
13       compensable damages from being required to comply with federal law.

14  
15  
16  
17  
18       **Respectfully submitted,**

19       

20  
21       **JOSEPH KIRCHNER**

22       *Pro Se Plaintiff*

23       4440 Parklawn Avenue

24       Edina, MN 55435

25       legal@lawsofexistence.com

26       (612) 552-2122

27       **Dated:** January 19, 2026

1  
2  
3  
4  
5 **VERIFICATION**

6 I, JOSEPH KIRCHNER, declare under penalty of perjury under the laws of the United  
7 States that I have read the foregoing Emergency Motion for Temporary Restraining  
8 Order and that the facts alleged therein are true and correct to the best of my  
9 knowledge, information, and belief.

10 **Executed on:** January 19, 2026

11 **Location:** Edina, Minnesota

12 

13 **JOSEPH KIRCHNER**

14 *Pro Se Plaintiff*

15 **ATTACHMENTS**

16 **Evidence Summaries**

17 **EXHIBIT E-0:** Anthropic Evidence Package Executive Summary (35 findings)

18 **EXHIBIT F-0:** Apple Evidence Package Executive Summary (8 findings)

19 **EXHIBIT G-0:** OpenAI Evidence Package Executive Summary (30 findings)

20 **Key Forensic Exhibits**

21 **EXHIBIT E-19:** Raw Failed Telemetry Evidence (47 tengu events in 36 seconds,  
22 177,673-byte payloads)

23 **EXHIBIT E-33:** Injection System Forensics (LaunchDarkly `source: force`, individual  
24 account targeting)

25 **EXHIBIT E-18:** Third-Party Data Recipients (7 undisclosed recipients)

26 **EXHIBIT N-36:** Legal Document Transmission Inventory (565 files, 19 MB)

27 **EXHIBIT N-33:** Source Code Exfiltration Methodology (five-stage architecture)

28 **EXHIBIT N-28:** Transmission Logic Analysis (dual-channel arbitrage)

29 **January 2026 Attack Escalation Exhibits**

30 **EXHIBIT D-13:** Attack Pause During Xfinity Call (Comcast involvement)

31 **EXHIBIT D-16:** January 6, 2026 Major Attack (1.31 GB peak, spoofed DNS)

32 **EXHIBIT D-17:** January 10, 2026 Sustained Attack (14.426 RST packets)

**EXHIBIT D-18:** January 11, 2026 MacBook Compromise (17,632 RST packets, Plaintiff's IP spoofed)

**EXHIBIT D-19:** Comcast Xfinity Router Security Architecture Analysis

**EXHIBIT D-20:** Comcast Router Forensic Log Compendium

### **Supporting Memoranda**

**MEMORANDUM D:** AI Platform Coordinated TOS Essential Purpose Failure

**APPENDIX A:** Router Forensic Analysis (October 29, 2025 attack)

**APPENDIX I:** Network Forensic Evidence

### **Child Protection And Injection Architecture**

**APPENDIX B:** METR-TED Foundation Regulatory Capture (child safety priority inversion analysis)

**APPENDIX C:** Anthropic System Prompt Auditing Analysis (child protection weakening, hidden injection architecture)

**EXHIBIT N-17:** Injection System Forensics (10,577 hidden injections, ~20% context consumption)

### **Statement Of Material Facts**

Statement of Material Facts Not in Dispute (filed separately per Local Rule 7(h))